

Shopee Terms of Service

Source: <https://help.shopee.sg/portal/4/article/77148-Shopee-Terms-of-Service>

Customer role: both

Language: en

Downloaded: 2026-08-04

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Shopee Terms of Service

****1. INTRODUCTION****

1.1 Welcome to the Shopee platform (the "Site"). Please read the following Terms of Service carefully before using this Site or opening a Shopee account ("Account") so that you are aware of your legal rights and obligations with respect to Shopee Singapore Private Limited and its Affiliates and subsidiaries (individually and collectively, "Shopee", "we", "us" or "our"). For the purposes of these Terms of Services, "Affiliates" means, with respect to an entity, any entity that Controls, is Controlled by, or is under common Control with, that entity, where "Control" means the possession, directly or indirectly, of the power to direct or cause the direction of the management, operating policies, or assets of that entity, whether by way of ownership of more than 50% of its voting or equity securities or assets, or by way of contract, management agreement, voting trust, or otherwise; provided that the term "Affiliates" shall include any variable interest entity regardless of whether any variable interest entity may be, or required to be, consolidated with that entity under generally accepted accounting principles. The "Services" we provide or make available include (a) the Site, (b) the services provided by the Site and by Shopee client software made available through the Site, and (c) all information, linked pages, features, data, text, images, photographs, graphics, music, sounds, video (including live streams), messages, tags, content, programming, software, application services (including, without limitation, any mobile application services) or other materials made available through the Site or its related services ("Content"). Any new features added to or augmenting the Services are also subject to these Terms of Service. These Terms of Service govern your use of Services provided by Shopee.

1.2 The Services include an online platform service that provides a place and opportunity for the sale of goods between the buyer ("Buyer") and the seller ("Seller") (collectively "you", "Users" or "Parties"). The

actual contract for sale is directly between Buyer and Seller and Shopee is not a party to that or any other contract between Buyer and Seller and accepts no obligations in connection with any such contract. Parties to such transaction will be entirely responsible for the sales contract between them, the listing of goods, warranty of purchase and the like. Shopee is not involved in the transaction between Users. Shopee may or may not pre-screen Users or the Content or information provided by Users. Shopee reserves the right to remove any Content or information posted by you on the Site in accordance to Section 6.4 herein. Shopee cannot ensure that Users will actually complete a transaction.

1.3 Before becoming a User of the Site, you must read and accept all of the terms and conditions in, and linked to, these Terms of Service and you must consent to the processing of your personal data as described in the Privacy Policy linked hereto.

1.4 Shopee reserves the right to change, modify, suspend or discontinue all or any part of this Site or the Services at any time or upon notice as required by local laws. Shopee may release certain Services or their features in a beta version, which may not work correctly or in the same way the final version may work, and we shall not be held liable in such instances. Shopee may also impose limits on certain features or restrict your access to parts of, or the entire, Site or Services in its sole discretion and without notice or liability.

1.5 Shopee reserves the right to refuse to provide you access to the Site or Services or to allow you to open an Account for any reason. BY USING SHOPEE SERVICES OR OPENING AN ACCOUNT, YOU GIVE YOUR IRREVOCABLE ACCEPTANCE OF AND CONSENT TO THE TERMS OF THIS AGREEMENT, INCLUDING THOSE ADDITIONAL TERMS AND CONDITIONS AND POLICIES REFERENCED HEREIN, IN OUR SELLER EDUCATION HUB, HELP CENTER AND/OR LINKED HERETO. IF YOU DO NOT AGREE TO THESE TERMS, PLEASE DO NOT USE OUR SERVICES OR ACCESS THE SITE. IF YOU ARE UNDER THE AGE OF 18 OR THE LEGAL AGE FOR GIVING CONSENT HEREUNDER PURSUANT TO THE APPLICABLE LAWS IN YOUR COUNTRY (THE "LEGAL AGE"), YOU MUST GET PERMISSION FROM A PARENT OR LEGAL GUARDIAN TO OPEN AN ACCOUNT AND THAT PARENT OR LEGAL GUARDIAN MUST AGREE TO THE TERMS OF THIS AGREEMENT. IF YOU DO NOT KNOW WHETHER YOU HAVE REACHED THE LEGAL AGE, OR DO NOT UNDERSTAND THIS SECTION, PLEASE DO NOT CREATE AN ACCOUNT UNTIL YOU HAVE ASKED YOUR PARENT OR LEGAL GUARDIAN FOR HELP. IF YOU ARE THE PARENT OR LEGAL GUARDIAN OF A MINOR WHO IS CREATING AN ACCOUNT, YOU MUST ACCEPT THE TERMS OF THIS AGREEMENT ON THE MINOR'S BEHALF AND YOU WILL BE RESPONSIBLE FOR ALL USE OF THE ACCOUNT OR COMPANY SERVICES USING SUCH ACCOUNT, WHETHER SUCH ACCOUNT IS CURRENTLY OPEN OR CREATED LATER.

****2.****PRIVACY****

2.1 Your privacy is very important to us at Shopee. To better protect your rights we have provided the Shopee Privacy Policy to explain our privacy practices in detail. Please review the Privacy Policy to understand how Shopee collects and uses the information associated with your Account and/or your use of the Services (the "User Information"). By using the Services or providing information on the Site, you:(i) consent to Shopee's collection, use, disclosure and/or processing of your Content, personal data and User Information as described in the Privacy Policy;(ii) agree and acknowledge that the proprietary rights of your User Information are jointly owned by you and Shopee; and(iii) shall not, whether directly or indirectly, disclose your User Information to any third party, or otherwise allow any third party to access or use your User Information, without Shopee's prior written consent.

2.2 Users in possession of another User's personal data through the use of the Services (the "Receiving Party") hereby agree that, they will (i) comply with all applicable personal data protection laws with respect to any such data; (ii) allow the User whose personal data the Receiving Party has collected (the "Disclosing Party") to remove his or her data so collected from the Receiving Party's database; and (iii) allow the

Disclosing Party to review what information have been collected about them by the Receiving Party, in each case of (ii) and (iii) above, in compliance with and where required by applicable laws.

****3.****LIMITED LICENSE****

3.1 Shopee grants you a limited and revocable license to access and use the Services subject to the terms and conditions of these Terms of Service. All proprietary Content, trademarks, service marks, brand names, logos and other intellectual property ("Intellectual Property") displayed in the Site are the property of Shopee and where applicable, third party proprietors identified in the Site. No right or licence is granted directly or indirectly to any party accessing the Site to use or reproduce any Intellectual Property, and no party accessing the Site shall claim any right, title or interest therein. By using or accessing the Services you agree to comply with the copyright, trademark, service mark, and all other applicable laws that protect the Services, the Site and its Content. You agree not to copy, distribute, republish, transmit, publicly display, publicly perform, modify, adapt, rent, sell, or create derivative works of any portion of the Services, the Site or its Content. You also may not, without our prior written consent, mirror or frame any part or whole of the contents of this Site on any other server or as part of any other website. In addition, you agree that you will not use any robot, spider or any other automatic device or manual process to monitor or copy our Content, without our prior written consent (such consent is deemed given for standard search engine technology employed by Internet search websites to direct Internet users to this website).

3.2 You are welcome to link to the Site from your website, provided that your website does not imply any endorsement by or association with Shopee. You acknowledge that Shopee may, in its sole discretion and at any time, discontinue providing the Services, either in part or as a whole, without notice.

****4.****SOFTWARE****

Any software provided by us to you as part of the Services is subject to the provisions of these Terms of Service. Shopee reserves all rights to the software not expressly granted by Shopee hereunder. Any third-party scripts or code, linked to or referenced from the Services, are licensed to you by the third parties that own such scripts or code, not by Shopee.

****5.****ACCOUNTS AND SECURITY****

5.1 Some functions of our Services require registration for an Account by selecting a unique user identification ("User ID") and password, and by providing certain personal information. If you select a User ID that Shopee, in its sole discretion, finds offensive or inappropriate, Shopee has the right to suspend or terminate your Account. You may be able to use your Account to gain access to other products, websites or services to which we have enabled access or with which we have tied up or collaborated. Shopee has not reviewed, and assumes no responsibility for any third party content, functionality, security, services, privacy policies, or other practices of those products, websites or services. If you do so, the terms of service for those products, websites or services, including their respective privacy policies, if different from these Terms of Service and/or our Privacy Policy, may also apply to your use of those products, websites or services.

5.2 By registering an Account, you agree and understand that:

(a) You may use any product and/or services available in Sites or applications provided by and/or operated by Shopee.

(b) Shopee may make available through the Sites certain products and/or services that originate from or are offered by Shopee's affiliates, subsidiaries or partners and other products made available by such affiliates, subsidiaries or partners from time to time in the Sites. You acknowledge and agree that the purchase or transaction of these products and/or services is subject to the terms of service for the respective products or services, which you separately agree to and accept when using or accessing such products, apps, websites

or services and, therefore, that Shopee is not responsible for and shall not be liable in the case of any failure or error relating to the purchase or transaction of these products or services. Please contact the relevant provider if you have any questions or encounter any issue in relation to the purchase or transaction of these products or services.

(c) You may be directly connected to and use the product and/or services available in the out of platform application(s) provided by certain of Shopee's affiliates and associates, including ShopeePay ("Out of Platform Application").

Your Account may be used to sign into, use or access the products, apps, websites and services provided by Shopee, as well as those provided by certain of its affiliates or partners, including but not limited to ShopeePay. Such products, websites and services shall be bound by the respective affiliate or partner's terms and conditions and privacy policies, which you agree to and accept when using or accessing such products, apps, websites or services. You may be able to use or access your Account, including any associated payment methods, transaction records, or other identifiers, through a variety of user interfaces, including, but not limited to, the Shopee app or website, ShopeePay or through other products, apps, websites or services.

You may register for an account through Shopee or ShopeePay. By registering an Account, you agree and understand that, to connect all of your ShopeePay services and the Services, your Account will be linked with your account with ShopeePay if you have used the same mobile number to register for both accounts.

(d) In the event that you use the Out of Platform Application as mentioned in paragraph (b) above, the use of such product and/or services shall be subject to the respective terms of service provided by the relevant affiliate or associate of Shopee.

5.3 You agree to (a) keep your password confidential and use only your User ID and password when logging in, (b) ensure that you log out from your account at the end of each session on the Site, (c) immediately notify Shopee of any unauthorised use of your Account, User ID and/or password, and (d) ensure that your Account information is accurate and up-to-date. You are fully responsible for all activities that occur under your User ID and Account even if such activities or uses were not committed by you. Shopee will not be liable for any loss or damage arising from unauthorised use of your password or your failure to comply with this Section.

5.4 You agree that Shopee may for any reason, in its sole discretion and with or without notice or liability to you or any third party, immediately terminate or suspend your Account and your User ID, remove or discard from the Site any Content associated with your Account and User ID, withdraw any subsidies offered to you, cancel or suspend any transactions associated with your Account and User ID, temporarily or in more serious cases permanently withhold any sale proceeds or refunds, and/or take any other actions that Shopee deems necessary. Grounds for such actions may include, but are not limited to, actual or suspected (a) extended periods of inactivity, as determined by us from time to time, (b) violation of the letter or spirit of these Terms of Service, (c) illegal, fraudulent, harassing, defamatory, threatening or abusive behaviour (d) having multiple user accounts, (e) buying products on the Site for the purpose of commercial re-sale, (f) abnormal or excessive purchasing of products from the same Seller or related group of Sellers, (g) voucher abuse (including, but not limited to, selling of vouchers to third parties, selling of vouchers or other credits at a significant markup above face value, and/or abnormal or excessive use of vouchers on the Site, (h) failure to make timely payment of any outstanding amount including overdue amounts on bank loans (or other obligation) owed to Shopee or any of its Affiliates (subject to applicable law), or (i) behaviour that is harmful to

other Users, third parties, or the business interests of Shopee. Use of an Account for illegal, fraudulent, harassing, defamatory, threatening or abusive purposes may be referred to law enforcement authorities without notice to you. If a legal dispute arises or law enforcement action is commenced relating to your Account or your use of the Services for any reason, Shopee may terminate your Account immediately with or without notice.

5.5 Users may terminate their Account if they notify Shopee in writing of their desire to do so. Notwithstanding any such termination, Users remain responsible and liable for any incomplete transaction (whether commenced prior to or after such termination), shipment of the product, payment for the product, or the like, and Users must contact Shopee after he or she has promptly and effectively carried out and completed all incomplete transactions according to the Terms of Service. Shopee shall have no liability, and shall not be liable for any damages incurred due to the actions taken in accordance with this Section. Users waive any and all claims based on any such action taken by Shopee.

5.6 You may only use the Services and/or open an Account if you are located in one of our approved countries, as updated from time to time.

5.7 If you are a Seller, you may be entitled to create sub-accounts ("Sub-Account") on the sub-account platform operated by Shopee ("Sub-Account Platform") that are linked to your Account(s). You acknowledge and agree that: (a) the purpose of the Sub-Accounts are to enhance the management of your Account(s) as a Seller, and you shall not use the Sub-Accounts for any other purposes (including, but not limited to, fraudulent or illegal activities); (b) while Sub-Accounts are not considered "Accounts" for the purposes of these Terms of Service, the provisions of this Clause 5 shall apply mutatis mutandis to the Sub-Accounts, except that references to "Accounts" shall be to the Sub-Accounts; (c) Sub-Accounts can be configured to have access to your Account(s) and the same rights as your Account(s) (or parts thereof), and you expressly acknowledge and agree that: (i) you are solely responsible for creating and configuring Sub-Accounts, and granting and controlling third party access to the Sub-Accounts; (ii) any third parties to whom you grant access to your Sub-Accounts will have the ability to access and operate your Account; (iii) we shall be entitled to treat any actions of the Sub-Accounts as actions of your Account; and (iv) you shall be responsible for all actions of the Sub-Accounts; and (d) Shopee reserves the right to amend or terminate the operation of the Sub-Account Platform and to close any Sub-Accounts at any time in its sole discretion.

****6.****TERM OF USE****

6.1 The license for use of this Site and the Services is effective until terminated. This license will terminate as set forth under these Terms of Service or if you fail to comply with any term or condition of these Terms of Service. In any such event, Shopee may effect such termination with or without notice to you.

6.2 You agree not to:

- (a) upload, post, transmit or otherwise make available any Content that is unlawful, harmful, threatening, abusive, harassing, alarming, distressing, tortuous, defamatory, vulgar, obscene, libelous, invasive of another's privacy, hateful, or racially, ethnically or otherwise objectionable;
- (b) violate any laws, including without limitation any laws and regulation in relation to export and import restrictions, third party rights or our Prohibited and Restricted Items policy;
- (c) upload, post, transmit or otherwise make available any Content featuring an unsupervised minor or use the Services to harm minors in any way;
- (d) use the Services or upload Content to impersonate any person or entity, or otherwise misrepresent your affiliation with a person or entity;
- (e) forge headers or otherwise manipulate identifiers in order to disguise the origin of any Content transmitted through the Services;
- (f) remove any proprietary notices from the Site;

- (g) cause, permit or authorize the modification, creation of derivative works, or translation of the Services without the express permission of Shopee;
- (h) use the Services for the benefit of any third party or any manner not permitted by the licenses granted herein;
- (i) use the Services or upload Content in a manner that is fraudulent, unconscionable, false, misleading or deceptive;
- (j) open and/or operate multiple user accounts in connection with any conduct that violates either the letter or spirit of these Terms of Service;
- (k) access the Shopee platform, open a user account, or otherwise access your user account using any non-official Shopee hardware or software, including but not limited to an emulator, simulator, bot or other similar hardware or software;
- (l) manipulate the price of any item or interfere with other User's listings;
- (m) take any action that may undermine the feedback or ratings systems;
- (n) attempt to decompile, reverse engineer, disassemble or hack the Services (or any portion thereof), or to defeat or overcome any encryption technology or security measures implemented by Shopee with respect to the Services and/or data transmitted, processed or stored by Shopee;
- (o) harvest or collect any information about or regarding other Account holders, including, without limitation, any personal data or information;
- (p) upload, email, post, transmit or otherwise make available any Content that you do not have a right to make available under any law or under contractual or fiduciary relationships (such as inside information, proprietary and confidential information learned or disclosed as part of employment relationships or under nondisclosure agreements);
- (q) upload, email, post, transmit or otherwise make available any Content that infringes any patent, trademark, trade secret, copyright or other proprietary rights of any party;
- (r) upload, email, post, transmit or otherwise make available any unsolicited or unauthorised advertising, promotional materials, "junk mail", "spam", "chain letters", "pyramid schemes", or any other unauthorised form of solicitation;
- (s) upload, email, post, transmit or otherwise make available any material that contains software viruses, worms, Trojan-horses or any other computer code, routines, files or programs designed to directly or indirectly interfere with, manipulate, interrupt, destroy or limit the functionality or integrity of any computer software or hardware or data or telecommunications equipment;
- (t) disrupt the normal flow of dialogue, cause a screen to "scroll" faster than other Users of the Services are able to type, or otherwise act in a manner that negatively affects other Users' ability to engage in real time exchanges;
- (u) interfere with, manipulate or disrupt the Services or servers or networks connected to the Services or any other User's use and enjoyment of the Services, or disobey any requirements, procedures, policies or regulations of networks connected to the Site;
- (v) take any action or engage in any conduct that could directly or indirectly damage, disable, overburden, or impair the Services or the servers or networks connected to the Services;
- (w) use the Services to intentionally or unintentionally violate any applicable local, state, national or international law, rule, code, directive, guideline, policy or regulation including, without limitation, laws and requirements (whether or not having the force of law) relating to anti-money laundering or counter-terrorism;
- (x) use the Services in violation of or to circumvent any sanctions or embargo administered or enforced by the U.S. Department of Treasury's Office of Foreign Assets Control or the U.S. Department of State, the United Nations Security Council, the European Union, His Majesty's Treasury or any other relevant sanctions

authority (collectively, the “Sanctions”);

(y) use the Services to violate the privacy of others or to "stalk" or otherwise harass another;

(z) infringe the rights of Shopee, including any intellectual property rights and any passing off of the same thereof;

(aa) use the Services to collect or store personal data about other Users in connection with the prohibited conduct and activities set forth above;

(bb) list items which infringe upon the copyright, trademark or other intellectual property rights of third parties or use the Services in a manner which will infringe the intellectual property rights of others; and/or

(cc) direct or encourage another user to conduct a transaction other than on the Site.

6.3 You understand that all Content, whether publicly posted or privately transmitted, is the sole responsibility of the person from whom such Content originated. This means that you, and not Shopee, are entirely responsible for all Content that you upload, post, email, transmit or otherwise make available through the Site. You understand that by using the Site, you may be exposed to Content that you may consider to be offensive, indecent or objectionable. To the maximum extent permitted by applicable law, under no circumstances will Shopee be liable in any way for any Content, including, but not limited to, any errors or omissions in any Content, or any loss or damage of any kind incurred as a result of the use of, or reliance on, any Content posted, emailed, transmitted or otherwise made available on the Site.

6.4 You acknowledge that Shopee and its designees shall have the right (but not the obligation) in their sole discretion to pre-screen, refuse, delete, stop, suspend, remove or move any Content, including without limitation any Content or information posted by you, that is available on the Site without any liability to you. Without limiting the foregoing, Shopee and its designees shall have the right to remove any Content (i) that violates these Terms of Service or our Prohibited and Restricted Items Policy; (ii) if we receive a complaint from another User; (iii) if we receive a notice or allegation of intellectual property infringement or other legal instruction or request for removal; or (iv) if such Content is otherwise objectionable. We may also block delivery of a communication (including, without limitation, status updates, postings, messages and/or chats) to or from the Services as part of our effort to protect the Services or our Users, or otherwise enforce the provisions of these Terms and Conditions. You agree that you must evaluate, and bear all risks associated with, the use of any Content, including, without limitation, any reliance on the accuracy, completeness, or usefulness of such Content. In this regard, you acknowledge that you have not and, to the maximum extent permitted by applicable law, may not rely on any Content created by Shopee or submitted to Shopee, including, without limitation, information in Shopee Forums and in all other parts of the Site.

6.5 You acknowledge, consent to and agree that Shopee may access, preserve, and/or disclose your Account information, Content, and any other materials or information you provide to us to any legal, regulatory, or governmental authority, the relevant rights owner, or other third parties if required to do so by law, pursuant to an order of a court or lawful request by any governmental or regulatory authority having jurisdiction over Shopee, or in a good faith belief that such access preservation or disclosure is reasonably necessary to: (a) comply with legal process; (b) enforce these Terms of Service or our Prohibited and Restricted Items Policy; (c) respond to claims that any Content violates the rights of third parties, including intellectual property rights; (d) respond to your requests for customer service; or (e) protect the rights, property or personal safety of Shopee, its Users and/or the public.

****7. ****VIOLATION OF OUR TERMS OF SERVICE****

7.1 Violations of this policy may result in a range of actions, including, without limitation, any or all of the following:

Listing deletion

Limits placed on Account privileges

Account suspension and subsequent termination

Criminal charges

Civil actions, including without limitation a claim for damages and/or interim or injunctive relief

7.2 If you believe a User on our Site is violating these Terms of Service, please contact Shopee customer service.

****8.****REPORTING INTELLECTUAL PROPERTY RIGHTS INFRINGEMENT****

8.1 As stated above, Shopee does not allow listings that violate the intellectual property rights of brands or other intellectual property rights owners ("IPR Owner").

8.2 Except where expressly stated otherwise, the Users are independent individuals or businesses and they are not associated with Shopee in any way and Shopee is neither the agent nor representative of the Users and does not hold and/or own any of the merchandises listed on the Site.

8.3 If you are an IPR Owner or an agent duly authorised by an IPR Owner ("IPR Agent") and you believe that your right or your principal's right has been infringed, please submit a complaint via Shopee's [Brand IP Portal](https://brandipp.business.accounts.shopee.com/authenticate/login?lang=en&should_hide_back=true&client_id=9&next=https%3A%2F%2Fbrandipp.shopee.com&previousPage=other%20articles) and provide us the documents to support your claim. Do allow us time to process the information provided. Shopee will respond to your complaint as soon as practicable.

8.4 Complaints under this Section 8 must be provided in the form prescribed by Shopee, which may be updated from time to time, and must include at least the following: (a) a physical or electronic signature of an IPR Owner or IPR Agent (collectively, "Informant"); (b) a description of the type and nature of intellectual property right that is allegedly infringed and proof of rights; (c) a description of the nature of alleged infringement with sufficient details to enable Shopee to assess the complaint; (d) URL(s) of the listing(s) which contain the alleged infringement; (e) sufficient information to allow Shopee to contact the Informant, such as Informant's physical address, telephone number and e-mail address; (f) a statement by Informant that the complaint is filed on good faith belief and that the use of the intellectual property as identified by the Informant is not authorised by the IPR Owner or the law; (g) a statement by the Informant that the information in the notification is accurate, that the Informant will indemnify us for any damages we may suffer as a result of the information provided by the Informant, and that the Informant has the appropriate right or is authorised to act on the IPR Owner's behalf in all matters relating to the complaint.

8.5 Shopee acknowledges that a brand or manufacturer may, subject to applicable law, have the right to enter into certain exclusive distribution agreements or minimum advertised price agreements for its products with other third parties. However, violations of such agreements do not constitute intellectual property rights infringement. As the enforcement of these agreements is a matter between the brand or manufacturer and the respective third parties with whom it contracts, Shopee generally does not assist in the enforcement of such exclusive distribution rights or price-control matters except where required by law.

8.6 Without limitation to the indemnity at Clause 32, each and every Seller agrees to indemnify and hold Shopee and its Affiliates harmless from any and all claims, causes of action, damages and judgments arising out of or relating to (a) any intellectual property infringement claim, complaint, or violation relating to any Content or product listings, and/or (b) any removal of such Content or product listings pursuant to or in relation to any intellectual property infringement claim, complaint, or violation.

****9.****PURCHASE AND PAYMENT****

9.1 Payments for goods purchased on Shopee can be made by using one or more of the following payment methods in each country it operates in:

(i) Credit Card

Card payments are processed through third-party payment channels and the type of credit cards accepted by these payment channels may vary depending on the jurisdiction you are in.

(ii) Instalment Purchase Plan Buyers may pay via instalment for orders exceeding S\$200. Payment via instalments are processed through third-party channels. The banks that currently support instalment plans are UOB, OCBC and DBS.

(iii) Other payment methods, including ShopeePay

Buyers may also link their bank accounts, permitted payment wallets or other permitted payment methods on our Site from time to time.

Where a Buyer provides consent to Shopee to link or save any payment method to their Account, the Buyer consents to Shopee sharing such payment method information with any payment processor, payment gateway, payment facilitator or other payment intermediary, channel or service provider for purposes of storing such payment method information and processing payments using such payment methods.

ShopeePay's services are provided pursuant to the terms, conditions and policies of use of service as determined by ShopeePay. By activating a ShopeePay Account and using ShopeePay services, you shall agree to the terms, conditions, and policies as determined by ShopeePay, and you hereby consent to Shopee sharing your personal data/information in Shopee's possession and/or under Shopee's control to ShopeePay for the purpose of activating a ShopeePay Account, and to manage, operate, administer and provide ShopeePay services to you, and for all related and incidental purposes. The collection, use and processing of Users' data is governed by the Shopee Privacy Policy and ShopeePay Privacy Policy, respectively.

9.2 Availability of a given payment method or its compatibility with Shopee may depend on your payment method and other factors and may change at any time.

9.3 You may be able to save a payment method to your Account through the Shopee application or website, ShopeePay or the payment method issuer's application or website. In order to save a payment method, you must complete required information on any registration forms presented to you. The information that you provide must be current, complete and accurate, and you must maintain it as such.

9.4 When you save a payment method, Shopee may store information relating to the payment method, such as your name, user ID, phone number, account number, account information, billing address or delivery address and other information relating to your account, and share such information with ShopeePay, to be reflected in ShopeePay. Shopee reserves the right to modify, suspend, cancel and/or set any conditions, including but not limited to setting minimum spending amount, for any payment method.

9.5 Where your Account is linked with your ShopeePay Account, your saved payment methods will be able to be used in both your Account and your ShopeePay Account, and you may use the saved payment method on ShopeePay or on the Sites.

9.6 You authorize us to confirm that your payment method is in good standing with its provider, including, but not limited to, by submitting a request for a payment authorization and/or a low-value credit and/or debit to the payment method, in accordance with payment network rules or other requirements applicable to the payment method.

9.7 Except where Shopee or its affiliate is the issuer, neither Shopee nor its affiliates are a party to your payment methods' account holder agreements, privacy policy or other terms of use. Nothing in these Terms of Service modifies any such payment method issuer terms. In the event of any inconsistency between these Terms and your payment method issuer's terms or privacy policy, these Terms of Service will govern the relationship between you and Shopee, and your payment method issuer's terms will govern the relationship between you and the payment method issuer. Shopee does not make any representation or verify that any of your payment methods is in good standing or that the issuer of your payment method will authorize or approve any transaction with a merchant when you use Shopee.

9.8 Except where Shopee or its affiliate is the issuer, neither Shopee nor its affiliates are involved in issuing credit or determining eligibility for credit, nor do they exercise control over the availability or accuracy of payment methods or funds, the provisioning (or addition) of payment methods to Shopee, or addition of funds to payment method balances. For any concerns relating to the foregoing, please contact your payment method's issuer.

9.9 Buyer may only change their preferred mode of payment for their purchase prior to making payment.

9.10 Shopee takes no responsibility and assume no liability for any loss or damages to Buyer arising from shipping information and/or payment information entered by Buyer or wrong remittance by Buyer in connection with the payment for the items purchased. We reserve the right to check whether Buyer is duly authorised to use certain payment method, and may suspend the transaction until such authorisation is confirmed or cancel the relevant transaction where such confirmation is not available.

****10. SELLER BALANCE****

10.1 Your Account allows the storage of money you receive from your sales proceeds made on the Platform ("Seller Balance"). The sum of this money, minus any withdrawals, will be reflected as your Seller Balance's balance. For the avoidance of doubt, your Seller Balance's balance may become negative in certain situations, and no further withdrawals may be made until such balance becomes positive (including from the receipt of future sales proceeds).

10.2 You may transfer funds from your Seller Balance (up to the amount of your Seller Balance's positive balance) to your linked bank account ("Linked Account") by submitting a transfer request ("Withdrawal Request") a maximum of once per day. Shopee may also automatically transfer funds from your Seller Balance to your Linked Account on a regular basis, as determined by Shopee. Shopee shall only process such transfers on business days and such transfers may take up to two business days to be credited to your Linked Account. Shopee is only able to make payment to Sellers via bank transfer. Hence, Sellers are required to provide Shopee with their bank account details in order to receive payments from their Seller Balance.

10.3 Sellers are entitled to one (1) free Withdrawal Request per week ("Weekly Withdrawal Limit"). Shopee may impose a fee of SGD0.20 for each additional Withdrawal Request made in excess of the Weekly Withdrawal Limit ("Withdrawal Fee"). The Weekly Withdrawal Limit and the Withdrawal Fee are subject to change at Shopee's sole discretion.

10.4 Money from your sale of items on Shopee shall be credited to your Seller Balance within 15 days after the order is deemed to be delivered (i.e. not later than the end of the return/refund period).

10.5 While for most orders earnings from the seller's sales will be credited within 7-15 days after the order is delivered, for orders delivered by non-integrated logistics providers, earnings may take up to 23 days from the seller's ship-out date to be credited.

10.6 Notwithstanding the foregoing, Shopee may temporarily extend the escrow period or take other steps to protect users and/or the platform, including where there is suspected fraud or irregular activity, or where

required by governmental or regulatory authorities or an order of court. Such reviews may delay crediting of earnings and may result in account suspension or restriction or such other measures as provided for in Section 5.4 of Shopee's Terms of Service.

10.7 Once submitted, you may not modify or cancel a Withdrawal Request.

10.8 If there is an error in the processing of any transaction, you authorize us to initiate debit or credit entries to your designated bank account, to correct such error, provided that any such correction is made in accordance with applicable laws and regulations. If we are unable to debit your designated bank account for any reason, you authorize us to resubmit the debit, plus any applicable fees, to any other bank account or payment instrument that you have on file with us or to deduct the debit and applicable fees from your Seller Balance in the future.

10.9 You authorize us to initiate debit or credit entries to your Seller Balance (including where this would result in your Seller Balance's balance remaining or becoming negative):

- (i) to correct any errors in the processing of any transaction;
- (ii) where Shopee has determined that you have engaged in fraudulent or suspicious activity and/or transactions;
- (iii) in connection with any lost, damaged or incorrect items;
- (iv) in connection with any rewards or rebates;
- (v) in connection with any outstanding fees;
- (vi) in connection with the settlement of any transaction dispute, including any compensation due to, or from, you;
- (vii) in connection with any banned items or items that are detained by customs;
- (viii) in connection with any change of mind agreed to by both Buyer and Seller;
- (ix) in connection with the settlement of any outstanding amount (or other obligation) owed to Shopee or any of its Affiliates, subject to applicable law;
- (x) to purchase Advertising Credits where you have activated the Advertising Credits Top Up Feature and your Advertising Credits have fallen below your Advertising Credits Minimum Amount; and
- (xi) in connection with any return and/or refund requests which are approved and/or processed in accordance with our Refunds and Returns Policy or any other separate Shopee program.

10.10 If your Account has been terminated, deactivated or suspended in accordance with these Terms of Service, or your Account remains inactive (for such duration as Shopee may prescribe from time to time), we shall be entitled to charge a fee for the administration of any remaining Seller Balance in your Account. The amount and frequency of such fee shall as Shopee may prescribe from time to time.

****11.****SHOPEEPAY****

11.1 Where you have both an Account with Shopee and an account with ShopeePay Pte. Ltd., you authorise Shopee to disclose such information to ShopeePay as is necessary for ShopeePay to provide the Services (as defined in the ShopeePay Terms of Service) to you, including but not limited to any payment details associated with your Account.

****12. SHOPEE GUARANTEE****

12.1 Shopee Guarantee is a service provided by Shopee or its authorised agent to protect purchases. To protect against the risk of liability, payment for purchases made to Seller using the Services will be held by Shopee or its authorised agent ("Shopee Guarantee Account"). Seller will not receive interest or other earnings from the sum you have paid into Shopee Guarantee Account.

12.2 After Buyer makes payment for his/her order ("Buyer's Purchase Monies"), Buyer's Purchase Monies will be held in Shopee Guarantee Account until:

- (a) Buyer sends confirmation to Shopee that Buyer has received his/her goods, in which case, unless 12.2(d)

applies, Shopee will release Buyer's Purchase Monies (less the Seller's proportion of the Shipping Fee (if applicable) and the Total Fees (defined below) in Shopee Guarantee Account to Seller;

(b) Shopee Guarantee Period expires, in which case, unless 12.2(c) or 12.2(d) applies, Shopee will release Buyer's Purchase Monies (less the Seller's proportion of the Shipping Fee (if applicable) and the Total Fees (defined below)) in Shopee Guarantee Account to Seller;

(c) Shopee determines that Buyer's application for a return of goods and/or refund is successful, in which case, unless 12.2(d) applies, Shopee will provide a refund to Buyer, subject to and in accordance with the Refunds and Return Policy;

(d) such other time as Shopee reasonably determines that a distribution of Buyer's Purchase Monies (less the Seller's proportion of the Shipping Fee (if applicable) and the Total Fees (defined below)) is appropriate, including, without limitation, where it deems reasonably necessary to comply with applicable law or a court order or to enforce these Terms of Service.

Shopee Guarantee is only offered to Buyers who have made payment through the channels provided by Shopee into Shopee Guarantee Account. Offline arrangements between Buyer and Seller will not be covered under Shopee Guarantee.

12.3 Payments made through Shopee channels will be held in the Shopee Guarantee Account for a specified period of time. To find out more about the payment period, please click this [link](<https://seller.shopee.sg/edu/article/44/Shopees-income-withdrawal-process?previousPage=other%20articles>).

12.4 If, for any reason, the Seller's bank account cannot be credited and/or the Seller cannot be contacted, Shopee will use reasonable endeavours to contact the Seller using the contact details provided by him/her. In the event that the Seller cannot be contacted and the Buyer's Purchase Monies remain unclaimed for more than twelve (12) months after they become due to the Seller, Shopee will deal with such unclaimed Buyer's Purchase Monies in accordance with any applicable laws.

12.5 Seller/Buyer must be the beneficial owner of the Account and conduct transaction on the Site only on behalf of him or herself. Shopee may require Seller or Buyer to provide his or her personal data such as recent identity photograph, bank account details and/or any other such documentation necessary, for verification purposes, including verification required by third party payment processing and logistic service providers. Seller/Buyer hereby grants Shopee his/her consent to use or provide to third party his/her personal data to facilitate his/her use of the Site. Further, Seller/Buyer authorises Shopee to use his/her personal data to make any inquiries we consider necessary to validate his/her identity with the appropriate entity such as his/her bank. For more information in relation to how Shopee handles your personal information, please visit our [Privacy Policy](<https://help.shopee.sg/portal/article/77149?previousPage=other%20articles>) page.

12.6 The Shopee Guarantee is in addition and without limitation to Buyer's and Seller's obligations under applicable law, which may go above and beyond what is provided for by the Shopee Guarantee. The Shopee Guarantee is neither intended nor designed to assist Buyer or Seller in complying with its own legal obligations, for which each party will remain solely responsible, and Shopee accepts no liability in connection with the same. Without limitation, the Shopee Guarantee does not constitute a product warranty.

12.7 Buyer and Seller acknowledge and agree that Shopee's decision (including any appeals) in respect of and relating to any issues concerning the Shopee Guarantee is final.

12.8 For the avoidance of doubt, any transactions not conducted on the Site will not qualify for the protection offered by Shopee Guarantee.

****13.****SHOPEE COINS REWARD SYSTEM****

13.1 Users may earn loyalty points ("Shopee Coins") by buying merchandise on the Site using the Shopee Guarantee system or through participation in other Shopee activities as Shopee may from time to time

determine (“Eligible Activities”) based on the conversion rate determined by Shopee in its sole discretion. Generally, Shopee Coins will be credited to a User’s Account upon the completion of a successful transaction or activity approved by Shopee. You are eligible to participate in the Shopee Coins reward system if you are a User and your Account does not exclude you from participation.

13.2 Transactions not completed on the Site using the Shopee Guarantee do not qualify for the Shopee Coins reward system. Shopee may at its sole discretion exclude categories of items from the Shopee Coins reward system.

13.3 Shopee Coins have no monetary value, does not constitute your property and cannot be purchased, sold, transferred or redeemed for cash.

13.4 Subject to Shopee rules and regulation as determined, varied or modified by Shopee from time to time, subject to any cap imposed by Shopee at its sole discretion, Users may redeem Shopee Coins on Shopee based on eligible promotions available on Shopee from time to time. Shopee Coins may be refunded in the event an order is cancelled, returned or refunded in accordance with Shopee’s Refunds and Return Policy.

13.5 The Shopee Coins you redeem will be deducted from your Shopee Coin balance. Each Shopee Coin comes with an expiry date. Do check your account details on the Site for Shopee Coin balances and expiry date.

13.6 From time to time, we may tell you that bonus Shopee Coins will be awarded for particular Eligible Activities. This may include but is not limited to purchases you make with participating Sellers or pursuant to specific promotional offers. We will notify you of the terms of such bonus awards if any from time to time.

13.7 If you have a dispute in relation to the number of Shopee Coins which you have been awarded in respect of an Eligible Activity, such a dispute must be made within one (1) month from the date of the Eligible Activity. We may require you to provide evidence to support your claim.

13.8 Shopee gives no warranty and accepts no responsibility as to the ultimate tax treatment of Shopee Coins. You will need to check with your tax advisor whether receiving Shopee Coins affects your tax situation.

13.9 Shopee reserves the right to (i) discontinue the Shopee Coins reward system at any time at its sole discretion, (ii) cancel or suspend a User’s right to participate in the Shopee Coins reward system, including the ability to earn and redeem Shopee Coins, and/or (iii) withhold, cancel, forfeit or clawback any Shopee Coins that have been or may be earned or redeemed by you, at its sole discretion.

****14. SHOPEE COINS MARKETING SERVICES****

14.1 Sellers may purchase Shopee Coins for gratuitous distribution to Buyers for marketing purposes under the “Marketing Centre” section of the Seller Centre (“Marketing Centre”). If you are a Seller that purchases Shopee Coins, you will be deemed to have consented to the terms and conditions described in this Section, and any explanatory materials published on this Site, the Seller Centre or otherwise communicated to Sellers in writing (“Seller Coins Rules”).

14.2 In order to purchase Shopee Coins, you must be an eligible Seller under the Seller Coins Rules. At the time you purchase and pay for the Shopee Coins, your Account must not be suspended.

14.3 You may purchase Shopee Coins via the payment methods set out in the Marketing Centre. After payment is completed, the Shopee Coins will be issued to your Account for giveaway to Buyers within 24 hours, and shall expire six (6) months after purchase or such other time as determined by Shopee. Except as otherwise provided in the applicable Seller Coins Rules, you may not cancel the order and/or request for a refund after you have purchased Shopee Coins and completed the payment process.

14.4 Shopee Coins purchased by Sellers may only be given away, free-of-charge, to Buyers via promotional channels made available in the Marketing Centre. You may not sell, redeem, or otherwise deal in, Shopee Coins under any circumstances. You agree that failure to comply with this section or any of the Seller Coins

Rules may, without limitation, result in the forfeiture of Shopee Coins purchased by you, in addition to any other actions or remedies that Shopee may take or enforce.

14.5 You understand and agree that Shopee does not warrant or guarantee any increase in viewership or sales of your items as a result of the purchase and gratuitous distribution of Shopee Coins.

14.6 You are advised to only purchase Shopee Coins after fully considering your budget and intended advertising objectives. Except as otherwise provided in these Terms of Service or the Seller Coins Advertising Rules, Shopee shall not be liable for any compensation or be subject to any liability (including but not limited to actual expenses and lost profits) for the results or intended results of purchasing Shopee Coins.

14.7 IF, NOTWITHSTANDING ANYTHING IN THESE TERMS OF SERVICE, SHOPEE IS FOUND BY A COURT OF COMPETENT JURISDICTION TO BE LIABLE (INCLUDING FOR GROSS NEGLIGENCE) IN RELATION TO THE PURCHASE BY YOU OF SHOPEE COINS, THEN, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, ITS LIABILITY TO YOU OR TO ANY THIRD PARTY IS LIMITED TO THE AMOUNT PAID BY YOU FOR THE SHOPEE COINS IN QUESTION ONLY.

****15.****SHOPEE COIN CASHBACK VOUCHER****

15.1 Users may receive a voucher entitling them to additional Shopee Coins (the “Shopee Coin Cashback Voucher”) on eligible purchases on the Site. Upon the completion of a successful transaction where the Shopee Coin Cashback Voucher has been applied, additional Shopee Coins will be credited to a User’s Account based on the conversion rate as indicated in the terms and conditions of such Shopee Coin Cashback Voucher (“Additional Shopee Coins Rate”) or as determined by Shopee in its sole discretion. Shopee Coins credited to a User following the redemption of a Shopee Coin Cashback Voucher shall have the same terms and conditions (including in relation to expiry) as regular Shopee Coins.

15.2 Shopee may allow Sellers to generate their own Shopee Coin Cashback Vouchers (each a “Seller Coin Cashback Voucher”), which Buyers may apply to eligible purchases from the Seller’s store. If you are a Seller that generates a Seller Coin Cashback Voucher, you will be deemed to have consented to the terms and conditions described in this Section.

15.3 When generating a Seller Coin Cashback Voucher, the Additional Shopee Coins Rate will be determined by Seller at the Seller’s own discretion. Seller shall be solely responsible for the accuracy of the Additional Shopee Coins Rate.

15.4 For each completed transaction where a Buyer successfully applies a Seller Coin Cashback Voucher, the Seller shall pay Shopee the value of the additional Shopee Coins credited to the Buyer (“Coin Cashback Price”). The Coin Cashback Price is calculated in Singapore Dollars as the number of additional Shopee Coins to be credited to the Buyer’s Account divided by 100, rounded up to the nearest cent.

15.5 Following the successful completion of a transaction, Shopee shall deduct the Coin Cashback Price from the Buyer’s Purchase Monies, and remit the balance to the Seller in accordance with Section 12.2. Shopee shall issue receipts or tax invoices for the Coin Cashback Price on request. For the avoidance of doubt, the Coin Cashback Price applies in addition to the Total Fees under the Terms of Service.

15.6 The Coin Cashback Price is strictly non-refundable.

****16.****DELIVERY****

****16.1** Shopee will inform Seller when Shopee receives Buyer’s Purchase Monies. Unless otherwise agreed with Shopee, Seller should then make the necessary arrangements to have the purchased item delivered to Buyer. For shipment using Non-Shopee Supported Logistics, Sellers and buyers will have to track their shipments via the logistics providers' platforms. ******

16.2 Seller must use his/her best effort to ensure that Buyer receives the purchased items within, whichever applicable, the Shopee Guarantee Period or the time period specified (for offline payment) by Seller on Seller’s listing.

16.3 Shopee may offer Buyers a guaranteed delivery date for eligible products ("Eligible Products"). If an Eligible Product does not arrive on or before the guaranteed delivery date as stated in the Order Details page on the Site ("Guarantee Arrival date"), Shopee may issue a voucher ("Guaranteed On-Time Voucher") to Buyer. Delivery dates shown on the Product Detail page are indicative estimates only and Shopee is not responsible for any other delivery date that is not stated in the Order Details page. For Eligible Products, once the Guaranteed Arrival Date has passed, Buyers need to claim the Guaranteed On-Time Voucher on the Order Details page within 3 days of the expiry of the applicable Shopee Guarantee Period (if Buyer does not click "Order Received") or within 3 days of the date that Buyer clicks "Order Received", otherwise the voucher will be forfeited. Guaranteed On-Time Vouchers cannot be cashed in whole or in part or transferred in any way, are based on availability and are subject to the terms and conditions of usage (including validity period) as specified by Shopee from time to time. For the avoidance of doubt, Guaranteed On-Time Vouchers are offered at Shopee's discretion and shall not constitute any admission of liability or wrongdoing by Shopee. By using the Guaranteed On-Time Voucher, Buyer unconditionally and unequivocally waives, release and discharges Shopee from all actions, proceedings, claims and demands whatsoever which Buyer may have in respect of a failed or late delivery of Eligible Products.

16.4 Shopee may, at its sole discretion, allow Buyers to extend the collection window for orders delivered to a locker or SPX Service Point, for an additional fee that is non-refundable.

16.5 For orders shipped using Shopee Supported Logistics (i.e. third-party logistics providers that have integrated their system with Shopee), users may raise a request to Shopee under, amongst others, Shopee's Refunds and Return Policy for items damaged or lost during the course of delivery. For orders not shipped using Shopee Supported Logistics, users understand that Seller bears all risk attached to the delivery of the purchased item(s) and warrants that he/she has or will obtain adequate insurance coverage for the delivery of the purchased item(s). In the event where the purchased item(s) is damaged, lost or failure of delivery during the course of delivery, Users acknowledge and agree that Shopee will not be liable for any damage, expense, cost or fees resulted therefrom and Seller and/or Buyer will reach out to the logistic service provider to resolve such dispute.

16.6 For Cross-Border Transaction. Users understand and acknowledge that, where a product listing states that the product will ship from overseas, such product is being sold from a Seller based outside of Singapore, and the importation and exportation of such product is subject to local laws and regulations. Users should familiarise themselves with all import and export restrictions that apply to the designating country. Users acknowledge that Shopee cannot provide any legal advice in this regard and agrees that Shopee shall not bear any risks or liabilities associated with the import and export of such products to Singapore.

16.7 **Where the Buyer elects to have a purchased item delivered by Shopee Supported Logistics, the fees payable to the relevant delivery company ("Shipping Fee") shall be borne by the Buyer, Seller and Shopee in such proportions as may be determined by Shopee and published on the Site from time to time. Shopee shall (i) collect the Buyer's proportion of the Shipping Fee from the Buyer, (ii) deduct the Seller's proportion of the Shipping Fee from the Buyer's Purchase Monies in accordance with Section 12.2, and (iii) pay the total Shipping Fee to the delivery company.**

16.8 For the avoidance of doubt, any Shopee-supported logistics services provided to Buyers and Sellers for overseas freight of goods from outside of Singapore to destinations within Singapore, as well as onshore logistics services for local freight, are provided or managed by SPX Express Private Limited.

****17. ****CANCELLATION, RETURN AND REFUND****

17.1 Buyer may only cancel his/her order prior to the payment of Buyer's Purchase Monies into Shopee Guarantee Account.

17.2 Buyer may apply for the return of the purchased item and refund, subject to and in accordance with

Shopee's Refunds and Return Policy. Please refer to Shopee's Refunds and Return Policy for further information.

17.3 Shopee reserves the right to cancel any transaction on the Site and Buyer agrees that Buyer's sole remedy will be to receive a refund of the Buyer's Purchase Monies paid into Shopee Guarantee Account.

17.4 If you have redeemed Shopee Coin for your transaction and you are successful in obtaining a refund based on Shopee's Refunds and Return Policy, Shopee shall refund the monies you have actually paid for the item and credit back any redeemed Shopee Coin to your Account separately.

17.5 Shopee does not monitor the cancellation, return and refund process for offline payment.

17.6 Subject to Section 17.7, refunds to Buyers shall be made via the same payment method used by the Buyer for the original purchase ("Original Payment Method") within the applicable timeline published from time to time at [\[\[Return Refund\] Return and refund timeframe\]\(https://help.shopee.sg/portal/4/article/146898?previousPage=other%20articles\)](https://help.shopee.sg/portal/4/article/146898?previousPage=other%20articles) (or such other URL or location as may be utilised by Shopee from time to time for such purpose).

17.7 In the event that Shopee is unable to effect the refund via the Original Payment Method for any reason whatsoever (including, but not limited to, where the Original Payment Method is no longer valid or cannot be used to receive funds), Buyer acknowledges and agrees that (i) Shopee may effect the refund via the issuance of Shopee vouchers (of equivalent value to the refund amount) in accordance with such timeline as may be determined by Shopee, and (ii) upon issuance of such vouchers, Buyer shall have no further right or claim against Shopee in connection with such refund.

****18.****SELLER'S RESPONSIBILITIES****

18.1 Seller shall properly manage and ensure that relevant information of the item (such as the price, item specifications and inventory amount) and any terms and conditions for sales is updated on Seller's listing and shall not post inaccurate, misleading or incomplete information.

18.2 The price of items for sale will be determined by the Seller at his/her own discretion.

18.3 For local orders where items are located in Singapore at the point of sale, Seller, if registered for Goods and Services Tax ("GST") in Singapore, is required to provide the GST inclusive prices to Buyer and shall issue tax invoice, receipt or credit note, where applicable, to Buyer on request.

18.4 For international orders where items are located outside Singapore at the point of sale, the price of an item shall include any GST, import taxes, customs duties and fees levied by the Singapore authorities upon importation and Seller shall not charge Buyer such amounts additionally and separately, with the exception of imports under clause 18.5.

18.5 Sellers who deliver items using incoterm "Delivery Duty Unpaid (DDU)" for the import of goods from Japan to Singapore are required to inform Buyer that import taxes may be separately collected by the carrier upon delivery of goods.

18.6 Seller is responsible for responding to Buyer's queries on Seller's GST registration status.

18.7 Seller agrees that Shopee may at its discretion engage in promotional activities to induce transactions between Buyer and Seller by reducing, discounting or refunding fees, or in other ways. The final price that Buyer will pay actually will be the price that such adjustment is applied to.

18.8 For the purpose of promoting the sales of the items listed by Seller, Shopee may post such items (at adjusted price) on third-party websites (such as portal sites and price comparison sites) and other websites (domestic or foreign) operated by Shopee.

18.9 Under Sections 18.3 and 18.4, Seller acknowledges and agrees that Seller will be responsible for paying all taxes, customs and duties for the item sold and Shopee cannot provide any legal or tax advice in this regard. As tax laws and regulations may change from time to time, Sellers are advised to seek professional advice if in doubt.

18.10 Seller acknowledge and agrees that Seller's violation of any of Shopee's policies will result in a range of actions as stated in Section 7.1.

****19.****PAID ADVERTISING****

19.1 Shopee offers advertising and marketing solutions services on its [Paid Advertising Site](<https://myads.shopee.sg/?previousPage=other%20articles>) and other site/s on an ongoing basis ****("Paid Advertising").**** Sellers may purchase the Paid Advertising services. Shopee provides the Paid Advertising services in accordance with these Terms of Service and any explanatory materials published on this Site, the Paid Advertising Site or otherwise communicated to Sellers in writing (hereinafter referred to as the "Paid Advertising Rules"). Sellers who purchase and use Paid Advertising services agree to be bound by the Paid Advertising Rules. If you are not agreeable to being bound by the Paid Advertising Rules, do not purchase and use any Paid Advertising Services.

19.2 In order to purchase and use Paid Advertising services, you must be an eligible Seller under the Paid Advertising Rules. At the time when you purchase and pay for the Paid Advertising services, your Account must not be suspended.

19.3 You may purchase Paid Advertising services by purchasing advertising credits on the Paid Advertising Site or other site/s ("Advertising Credits"), and fees payable for the Paid Advertising services will be deducted from the Advertising Credits by Shopee. All Advertising Credits will be subject to goods and services tax and expire after six (6) months of purchase, or such other time as determined by Shopee. Except as otherwise provided in the applicable Paid Advertising Rules, you may not cancel the order and/or request for a refund after you have purchased Advertising Credits and completed the payment process.

19.4 You may also choose to have your Advertising Credits automatically topped up via your Seller Balance ("Advertising Credits Top Up Feature") if your Advertising Credits balance falls below an amount set by you ("Advertising Credits Minimum Amount"). When activating the Advertising Credits Top Up Feature, you may choose the Advertising Credits Minimum Amount and the amount of top up, and you consent to the debit of your Seller Balance in accordance with Section 10 of these Terms of Service.

19.5 You may have the option to purchase product and shop advertising services at the time you list an item for sale or subsequently. When you purchase product and shop advertising services, you can set different budgets, marketing periods, etc. for each item in accordance with the Paid Advertising Rules. The service for each item will be activated and will expire on the respective dates set by you (the "Paid Advertising Period"). You will not be entitled to transfer the remaining Paid Advertising Period or Advertising Credits to other items if an item is sold or unlisted during the Paid Advertising Period you set for that item. The Advertising Credits will also not be refunded.

19.6 The goods you list on the Site must comply with all relevant laws and regulations, the Paid Advertising Rules, these Terms of Service and the Prohibited and Restricted Items Policy. You understand and agree that Shopee has the right to immediately remove any listing which violates any of the foregoing and any Paid Advertising fees that you have paid or Advertising Credits you have used in relation to any listing removed pursuant to this Section 19.6 will not be refunded. Shopee will also not be liable to compensate you for any loss whatsoever in relation to listings removed pursuant to this Section 19.6.

19.7 You understand and agree that Shopee does not warrant or guarantee any increase in viewership or sales of your items as a result of the Paid Advertising services.

19.8 You are advised to only purchase Paid Advertising services after fully considering your budget and intended advertising objectives. Except as otherwise provided in these Terms of Service or the Paid Advertising Rules, Shopee shall not be liable for any compensation or be subject to any liability (including but not limited to actual expenses and lost profits) for the results or intended results of any Paid Advertising service.

19.9 IF, NOTWITHSTANDING ANYTHING IN THESE TERMS OF SERVICE, SHOPEE IS FOUND BY A COURT OF COMPETENT JURISDICTION TO BE LIABLE (INCLUDING FOR GROSS NEGLIGENCE) IN RELATION TO ANY PAID ADVERTISING SERVICE, THEN, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, ITS LIABILITY TO YOU OR TO ANY THIRD PARTY IS LIMITED TO THE AMOUNT PAID BY YOU FOR THE PAID ADVERTISING SERVICE IN QUESTION ONLY.

19.10 For Sellers located in Singapore, the tax invoices for the automatic top up of Paid Advertising can be retrieved from the Seller Center.

****20.****PURCHASE AND SALE OF ALCOHOL****

20.1 The purchase and sale of alcoholic products ("Alcohol") on the Site is permitted by Shopee subject to the terms and conditions of this Section 20. If you are a buyer of Alcohol ("Alcohol Buyer"), you will be deemed to have consented to the terms and conditions in this Section 20 when you purchase Alcohol on the Site. Similarly, if you are an approved seller of Alcohol ("Alcohol Seller"), you will be deemed to have consented to the terms and conditions in this Section 20 when you sell Alcohol on the Site.

20.2 If you are an Alcohol Buyer:

- (i) you represent and warrant that you and (if applicable) the person receiving the Alcohol ("Recipient") are aged 18 or above;
- (ii) you shall not request delivery of Alcohol to any public place (as that term is defined in the Liquor Control (Supply and Consumption) Act 2015 as amended from time to time); and
- (iii) if requested by an Alcohol Seller or Shopee (or its agents), you and/or the Recipient shall provide photo identification for age verification purposes.

20.3 If you are an Alcohol Seller, you represent and warrant that:

- (i) you hold all necessary licences and/or permits to sell Alcohol through the Site, and shall provide a copy of such licences and/or permits and supporting documents to Shopee immediately upon request for verification purposes; and
- (ii) all information and documents provided to Shopee are true and accurate.

20.4 When delivering Alcohol to an Alcohol Buyer:

- (i) the delivery agent reserves the right to request for valid photo identification for age verification purposes; and
- (ii) Shopee (via the delivery agent) reserves the right to refuse the delivery of Alcohol if the Alcohol Buyer and/or the Recipient appears intoxicated or is unable to provide valid photo identification for age verification purposes.

20.5 Each Alcohol Buyer and Alcohol Seller severally agrees to indemnify, defend and hold harmless Shopee, and its shareholders, subsidiaries, Affiliates, directors, officers, agents, co-branders or other partners, and employees (collectively, the "Indemnified Parties") from and against any and all claims, actions, proceedings, and suits and all related liabilities, damages, settlements, penalties, fines, costs and expenses (including, without limitation, any other dispute resolution expenses) incurred by any Indemnified Party arising out of or relating to: (a) any inaccuracy or breach of its representations in Section 20.2 and/or Section 20.3 (as applicable); and (b) its breach of any law or any rights of a third party.

****21.****COMMISSION AND FEES****

21.1 Shopee charges a commission fee ("Commission Fee") and a transaction handling fee ("Transaction Fee") for all successful transactions completed on the Site. The Commission Fee and Transaction Fee is borne by the Seller, and shall each be calculated according to the rates as notified to Sellers from time to time on the Site. The Commission Fee and Transaction Fee is each subject to GST ("Tax Amount"), and the Seller is responsible for such Tax Amount.

21.2 For Sellers located outside of Singapore, Shopee charges a fee for all successful transactions

completed on the Site ("Cross Border Fee"). The Cross Border Fee is borne by the Seller, and is calculated according to the rates as notified to such Sellers from time to time on the Site.

21.3 Shopee charges an additional fee for all successful transactions completed on the Site where the Buyer selects SPayLater as the payment method ("SPayLater Fee"). The SPayLater Fee is borne by the Sellers, and is calculated according to the rates as notified to such Sellers from time to time on the Site. The SPayLater Fee is subject to GST ("SPayLater Tax Amount"), and the Seller is responsible for such SPayLater Tax Amount.

21.4 For Sellers that sell Products on the Platform through the Shopify API, Shopee charges a fee for all successful transactions completed on the Site ("Shopify Transaction Fee"). The Shopify Transaction Fee is borne by the Seller, and is calculated as one and a half percent (1.5%) of the Buyer's Purchase Monies, rounded up to the nearest cent. The Shopify Transaction Fee is subject to GST ("Shopify Tax Amount"), and the Seller is responsible for such Shopify Tax Amount. For the avoidance of doubt, the Shopify Transaction Fee and Shopify Tax Amount applies in addition to the Transaction Fee and Tax Amount.

21.5 Shopee may also charge additional service fees in respect of any other Services provided by Shopee to the Seller (including, but not limited to, the Free Shipping Special Programme or the Coins Cashback Programme) ("Other Fees"). Such Other Fees shall be calculated in accordance with the terms and conditions of the relevant Service.

21.6 Following the successful completion of a transaction, Shopee shall deduct the Commission Fee, Transaction Fee, Tax Amount, Cross Border Fee, SPayLater Fee, SPayLater Tax Amount, Shopify Transaction Fee, Shopify Tax Amount and Other Fees (as applicable) (collectively, the "Total Fees") from the Buyer's Purchase Monies, and remit the balance to the Seller in accordance with Section 12.2. Shopee shall issue receipts or tax invoices for the Total Fees paid by Seller on request. For Sellers located in Singapore, these tax invoices can be retrieved from the Seller Center.

****22. OVERSEAS VENDOR REGISTRATION****

22.1 For Sellers located outside of Singapore selling Digital Services that fall under the scope of the Overseas Vendor Registration Regime ("Overseas Digital Services Seller"), supplies of Digital Services to Buyers (i.e. individuals and non-GST registered businesses) are subject to GST ("OVR GST Amount"). If Buyer is GST registered, the responsibility lies with the GST-registered Buyer to provide his GST registration number to Shopee and Seller as evidence that he is indeed GST-registered. With effect from 1 January 2023, the scope of the Overseas Vendor Registration Regime will be extended to include non-digital services that can be supplied and received remotely and low value goods sold by sellers from outside of Singapore.

22.2 Shopee shall withhold and timely remit the appropriate OVR GST Amount to the Singapore Tax authorities. The Overseas Digital Services Seller shall ensure that all applicable taxes required to be charged on the sale of the Digital Service, if any, are duly applied. The Overseas Digital Services Seller shall cooperate and endeavor to provide Shopee with all necessary information in order to comply with the applicable tax requirements under the Overseas Vendor Registrations regime. With effect from 1 January 2023, the scope of the Overseas Vendor Registration Regime will be extended to include non-digital services that can be supplied and received remotely and low value goods sold by sellers from outside of Singapore.

****23. ****DISPUTES****

23.1 In the event a problem arises in a transaction, such problem shall be resolved according to Shopee's policies.

23.2 Each Buyer and Seller covenants and agrees that it will not bring suit or otherwise assert any claim against Shopee or its Affiliates (except where Shopee or its Affiliates is the Seller of the product that the claim relates to) in relation to any transaction made on the Site or any dispute related to such transaction.

23.3 Users covered under Shopee Guarantee may send written request to Shopee to assist them in resolving

issues which may arise from a transaction upon request. Shopee may, at its sole discretion and with absolutely no liability to Seller and Buyer, take all necessary steps to assist Users resolving their dispute. For more information, please refer to Shopee's Refunds and Return Policy.

23.4 To be clear, the services provided under this Section 23 are only available to Buyers covered under Shopee Guarantee. Buyer using other payment means for his/her purchase should contact Seller directly.

****24.****FEEDBACK****

24.1 Shopee welcomes information and feedback from our Users which will enable Shopee to improve the quality of service provided. Please refer to our feedback procedure below for further information:

(i) Feedback may be made in writing through email to or using the feedback form found on the App.

(ii) Anonymous feedback will not be accepted.

(iii) Users affected by the feedback should be fully informed of all facts and given the opportunity to put forward their case.

(iv) Vague and defamatory feedback will not be entertained.

****25.****DISCLAIMERS****

25.1 THE SERVICES ARE PROVIDED "AS IS" AND WITHOUT ANY WARRANTIES, CLAIMS OR REPRESENTATIONS MADE BY SHOPEE OF ANY KIND EITHER EXPRESSED, IMPLIED OR STATUTORY WITH RESPECT TO THE SERVICES, INCLUDING, WITHOUT LIMITATION, WARRANTIES OF QUALITY, PERFORMANCE, NON-INFRINGEMENT, MERCHANTABILITY, OR FITNESS FOR A PARTICULAR PURPOSE, NOR ARE THERE ANY WARRANTIES CREATED BY COURSE OF DEALING, COURSE OF PERFORMANCE OR TRADE USAGE. WITHOUT LIMITING THE FOREGOING AND TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, SHOPEE DOES NOT WARRANT THAT THE SERVICES, THIS SITE OR THE FUNCTIONS CONTAINED THEREIN WILL BE AVAILABLE, ACCESSIBLE, UNINTERRUPTED, TIMELY, SECURE, ACCURATE, COMPLETE OR ERROR-FREE, THAT DEFECTS, IF ANY, WILL BE CORRECTED, OR THAT THIS SITE AND/OR THE SERVER THAT MAKES THE SAME AVAILABLE ARE FREE OF VIRUSES, CLOCKS, TIMERS, COUNTERS, WORMS, SOFTWARE LOCKS, DROP DEAD DEVICES, TROJAN-HORSES, ROUTINGS, TRAP DOORS, TIME BOMBS OR ANY OTHER HARMFUL CODES, INSTRUCTIONS, PROGRAMS OR COMPONENTS.

25.2 YOU ACKNOWLEDGE THAT THE ENTIRE RISK ARISING OUT OF THE USE OR PERFORMANCE OF THE SITE AND/OR THE SERVICES REMAINS WITH YOU TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW.

25.3 SHOPEE HAS NO CONTROL OVER AND, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, DOES NOT GUARANTEE OR ACCEPT ANY RESPONSIBILITY FOR: (A) THE FITNESS FOR PURPOSE, EXISTENCE, QUALITY, SAFETY OR LEGALITY OF ITEMS AVAILABLE VIA THE SERVICES; OR (B) THE ABILITY OF SELLERS TO SELL ITEMS OR OF BUYERS TO PAY FOR ITEMS. IF THERE IS A DISPUTE INVOLVING ONE OR MORE USERS, SUCH USERS AGREE TO RESOLVE SUCH DISPUTE BETWEEN THEMSELVES DIRECTLY AND, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, RELEASE SHOPEE AND ITS AFFILIATES FROM ANY AND ALL CLAIMS, DEMANDS AND DAMAGES ARISING OUT OF OR IN CONNECTION WITH ANY SUCH DISPUTE.

****26.****EXCLUSIONS AND LIMITATIONS OF LIABILITY****

26.1 TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL SHOPEE BE LIABLE WHETHER IN CONTRACT, WARRANTY, TORT (INCLUDING, WITHOUT LIMITATION, NEGLIGENCE (WHETHER ACTIVE, PASSIVE OR IMPUTED), PRODUCT LIABILITY, STRICT LIABILITY OR OTHER THEORY), OR OTHER CAUSE OF ACTION AT LAW, IN EQUITY, BY STATUTE OR OTHERWISE, FOR:

(i) (A) LOSS OF USE; (B) LOSS OF PROFITS; (C) LOSS OF REVENUES; (D) LOSS OF DATA; (E) LOSS OF GOOD WILL; OR (F) FAILURE TO REALISE ANTICIPATED SAVINGS, IN EACH CASE WHETHER DIRECT OR INDIRECT; OR

(ii) ANY INDIRECT, INCIDENTAL, SPECIAL OR CONSEQUENTIAL DAMAGES, ARISING OUT OF OR IN CONNECTION WITH THE USE OR INABILITY TO USE THIS SITE OR THE SERVICES, INCLUDING, WITHOUT LIMITATION, ANY DAMAGES RESULTING THEREFROM, EVEN IF SHOPEE HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

26.2 YOU ACKNOWLEDGE AND AGREE THAT YOUR ONLY RIGHT WITH RESPECT TO ANY PROBLEMS OR DISSATISFACTION WITH THE SERVICES IS TO REQUEST FOR TERMINATION OF YOUR ACCOUNT AND/OR DISCONTINUE ANY USE OF THE SERVICES.

26.3 IF, NOTWITHSTANDING THE PREVIOUS SECTIONS, SHOPEE IS FOUND BY A COURT OF COMPETENT JURISDICTION TO BE LIABLE (INCLUDING FOR GROSS NEGLIGENCE), THEN, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, ITS LIABILITY TO YOU OR TO ANY THIRD PARTY IS LIMITED TO THE LESSER OF: (A) ANY AMOUNTS DUE AND PAYABLE TO YOU PURSUANT TO THE SHOPEE GUARANTEE; AND (B) SG \$100 (ONE HUNDRED SINGAPORE DOLLARS).

26.4 NOTHING IN THESE TERMS OF SERVICE SHALL LIMIT OR EXCLUDE ANY LIABILITY FOR DEATH OR PERSONAL INJURY CAUSED BY SHOPEE'S NEGLIGENCE, FOR FRAUD OR FOR ANY OTHER LIABILITY ON THE PART OF SHOPEE THAT CANNOT BE LAWFULLY LIMITED AND/OR EXCLUDED.

****27.****LINKS TO THIRD PARTY SITES AND SHARING VIDEOS FROM YOUTUBE****

27.1 Third party links provided throughout the Site will let you leave this Site. These links are provided as a courtesy only, and the sites they link to are not under the control of Shopee in any manner whatsoever and you therefore access them at your own risk. Shopee is in no manner responsible for the contents of any such linked site or any link contained within a linked site, including any changes or updates to such sites. Shopee is providing these links merely as a convenience, and the inclusion of any link does not in any way imply or express affiliation, endorsement or sponsorship by Shopee of any linked site and/or any of its content therein.

27.2 Shopee allows you to share videos from YouTube on the Shopee Livestream feature ("YouTube Content"). By sharing YouTube Content, you hereby agree to be bound by the YouTube Terms of Service (<https://www.youtube.com/t/terms>).

****28.****YOUR CONTRIBUTIONS TO THE SERVICES****

28.1 By submitting Content for inclusion on the Services, you represent and warrant that you have all necessary rights and/or permissions to grant the licenses below to Shopee. You further acknowledge and agree that you are solely responsible for anything you post or otherwise make available on or through the Services, including, without limitation, the accuracy, reliability, nature, rights clearance, compliance with law and legal restrictions associated with any Content contribution. You hereby grant Shopee and its successors a perpetual, irrevocable, worldwide, non-exclusive, royalty-free, sub-licensable and transferable license to use, copy, distribute, republish, transmit, modify, adapt, create derivative works of, publicly display, and publicly perform such Content contribution on, through or in connection with the Services in any media formats and through any media channels, including, without limitation, for promoting and redistributing part of the Services (and its derivative works) without need of attribution and you agree to waive any moral rights (and any similar rights in any part of the world) in that respect. You understand that your contribution may be transmitted over various networks and changed to conform and adapt to technical requirements.

28.2 Any Content, material, information or idea you post on or through the Services, or otherwise transmit to Shopee by any means (each, a "Submission"), is not considered confidential by Shopee and may be disseminated or used by Shopee without compensation or liability to you for any purpose whatsoever, including, but not limited to, developing, manufacturing and marketing products. By making a Submission to

Shopee, you acknowledge and agree that Shopee and/or other third parties may independently develop software, applications, interfaces, products and modifications and enhancements of the same which are identical or similar in function, code or other characteristics to the ideas set out in your Submission. Accordingly, you hereby grant Shopee and its successors a perpetual, irrevocable, worldwide, non-exclusive, royalty-free, sub-licensable and transferable license to develop the items identified above, and to use, copy, distribute, republish, transmit, modify, adapt, create derivative works of, publicly display, and publicly perform any Submission on, through or in connection with the Services in any media formats and through any media channels, including, without limitation, for promoting and redistributing part of the Services (and its derivative works). This provision does not apply to personal information that is subject to our privacy policy except to the extent that you make such personal information publicly available on or through the Services.

****29.****THIRD PARTY CONTRIBUTIONS TO THE SERVICES AND EXTERNAL LINKS****

29.1 Each contributor to the Services of data, text, images, sounds, video, software and other Content is solely responsible for the accuracy, reliability, nature, rights clearance, compliance with law and legal restrictions associated with their Content contribution. As such, Shopee is not responsible to, and shall not, regularly monitor or check for the accuracy, reliability, nature, rights clearance, compliance with law and legal restrictions associated with any contribution of Content. You will not hold Shopee responsible for any User's actions or inactions, including, without limitation, things they post or otherwise make available via the Services.

29.2 In addition, the Services may contain links to third party products, websites, services and offers. These third party links, products, websites and services are not owned or controlled by Shopee. Rather, they are operated by, and are the property of, the respective third parties, and may be protected by applicable copyright or other intellectual property laws and treaties. Shopee has not reviewed, and assumes no responsibility for the content, functionality, security, services, privacy policies, or other practices of these third parties. You are encouraged to read the terms and other policies published by such third parties on their websites or otherwise. By using the Services, you agree that Shopee shall not be liable in any manner due to your use of, or inability to use, any website or widget. You further acknowledge and agree that Shopee may disable your use of, or remove, any third party links, or applications on the Services to the extent they violate these Terms of Service.

****30.****YOUR REPRESENTATIONS AND WARRANTIES****

You represent and warrant that:

- (a) you possess the legal capacity (and in the case of a minor, valid parent or legal guardian consent), right and ability to enter into these Terms of Service and to comply with its terms;
- (b) you will use the Services for lawful purposes only and in accordance with these Terms of Service and all applicable laws, rules, codes, directives, guidelines, policies and regulations; and
- (c) you are not located or resident in a country or territory that is the subject or target of Sanctions (including Iran, Cuba, Syria, North Korea, Crimea, Donetsk, Luhansk regions in Ukraine).

****31.****FRAUDULENT OR SUSPICIOUS ACTIVITY****

If Shopee, in its sole discretion, believes that you may have engaged in any potentially fraudulent or suspicious activity and/or transactions, we may take various actions to protect Shopee, other Buyers or Sellers, other third parties or you from Reversals, Chargebacks, Claims, fees, fines, penalties and any other liability. The actions we may take include but are not limited to the following:

- (a) We may close, suspend, or limit your access to your Account or the Services, and/or suspend the processing of any transaction;
- (b) We may suspend your eligibility for Shopee Guarantee;
- (c) We may hold, apply or transfer the funds in your Account as required by judgments and orders which

affect you or your Account, including judgments and orders issued by courts in Singapore or elsewhere and directed to Shopee;

(d) We may refuse to provide the Services to you now and in the future;

(e) We may hold your funds for a period of time reasonably needed to protect against the risk of liability to Shopee or a third party, or if we believe that you may be engaging in potentially fraudulent or suspicious activity and/or transactions.

For the purposes of this Section:

"Chargeback" means a request that a Buyer files directly with his or her debit or credit card company or debit or credit card issuing bank to invalidate a payment.

"Claim" means a challenge to a payment that a Buyer or Seller files directly with Shopee.

"Reversal" means the reversal of a payment by Shopee because (a) it is invalidated by the sender's bank, (b) it was sent to you in error by Shopee, (c) the sender of the payment did not have authorization to send the payment (for example: the sender used a stolen credit card), (d) you received the payment for activities that violated these Terms of Service or any other Shopee policy, or (e) Shopee decided a Claim against you.

****32.****INDEMNITY****

You agree to indemnify, defend and hold harmless Shopee, and its shareholders, subsidiaries, Affiliates, directors, officers, agents, co-branders or other partners, and employees (collectively, the "Indemnified Parties") from and against any and all claims, actions, proceedings, and suits and all related liabilities, damages, settlements, penalties, fines, costs and expenses (including, without limitation, any other dispute resolution expenses) incurred by any Indemnified Party arising out of or relating to: (a) any transaction made on the Site, or any dispute in relation to such transaction (except where Shopee or its Affiliates is the Seller in the transaction that the dispute relates to), (b) the Shopee Guarantee, (c) the hosting, operation, management and/or administration of the Services by or on behalf of Shopee, (d) your violation or breach of any term of these Terms of Service or any policy or guidelines referenced herein, (e) your use or misuse of the Services, (f) your breach of any law or any rights of a third party, or (g) any Content uploaded by you.

****33.****SEVERABILITY****

If any provision of these Terms of Service shall be deemed unlawful, void, or for any reason unenforceable under the law of any jurisdiction, then that provision shall be deemed severable from these terms and conditions and shall not affect the validity and enforceability of any remaining provisions in such jurisdiction nor the validity and enforceability of the provision in question under the law of any other jurisdiction.

****34.****GOVERNING LAW****

These Terms of Service shall be governed by and construed in accordance with the laws of the Republic of Singapore without regard to its conflict of law rules. The United Nations Convention on Contracts for the International Sale of Goods and the Uniform Computer Information Transaction Act, to the extent applicable, are expressly disclaimed. Unless otherwise required by applicable laws, any dispute, controversy, claim or difference of any kind whatsoever arising out of or relating to these Terms of Service against or relating to Shopee or any Indemnified Party under these Terms of Service shall be referred to and finally resolved by arbitration in Singapore in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("SIAC Rules") for the time being in force, which rules are deemed to be incorporated by reference in this Section. There will be one (1) arbitrator and the language of the arbitration shall be English.

****35.****GENERAL PROVISIONS****

35.1 Shopee reserves all rights not expressly granted herein.

35.2 Shopee may modify these Terms of Service at any time by posting the revised Terms of Service on this Site. Your continued use of this Site and/or receipt of any Services (including, for the avoidance of doubt, the continued provision of an Account to you by Shopee) after such changes have been posted (regardless of

whether you have reviewed such changes) shall constitute your acceptance of such revised Terms of Service. Shopee may (but shall not be obliged to) notify you that a change to the Terms of Service has been made, and you should keep yourself updated as to whether any such changes have been made, and the content and effect of such changes.

35.3 You may not assign, sublicense or transfer any rights granted to you hereunder or subcontract any of your obligations.

35.4 Nothing in these Terms of Service shall constitute a partnership, joint venture or principal-agent relationship between you and Shopee, nor does it authorise you to incur any costs or liabilities on Shopee's behalf.

35.5 The failure of Shopee at any time or times to require performance of any provision hereof shall in no manner affect its right at a later time to enforce the same unless the same is waived in writing.

35.6 These Terms of Service are solely for your and our benefit and are not for the benefit of any other person or entity, except for Shopee's Affiliates and subsidiaries (and each of Shopee's and its Affiliates' and subsidiaries' respective successors and assigns).

35.7 The terms set forth in these Terms of Service and any agreements and policies included or referred to in these Terms of Service constitute the entire agreement and understanding of the parties with respect to the Services and the Site and supersede any previous agreement or understanding between the parties in relation to such subject matter. The parties also hereby exclude all implied terms in fact. In entering into the agreement formed by these Terms of Service, the parties have not relied on any statement, representation, warranty, understanding, undertaking, promise or assurance of any person other than as expressly set out in these Terms of Service. Each party irrevocably and unconditionally waives all claims, rights and remedies which but for this Section it might otherwise have had in relation to any of the foregoing. These Terms of Service may not be contradicted, explained or supplemented by evidence of any prior agreement, any contemporaneous oral agreement or any consistent additional terms.

35.8 You agree to comply with all applicable laws, statutes, regulations and codes relating to anti-bribery and corruption including without limitation the UK Bribery Act, the US Foreign Corrupt Practices Act and the Singapore Prevention of Corruption Act and confirm that you have and shall have in place all policies and procedures needed to ensure compliance with such requirements.

35.9 If you have any questions or concerns about these Terms of Service or any issues raised in these Terms of Service or on the Site, please reach out to our [Customer Service Team](<https://help.shopee.sg/portal/4/article/76759?previousPage=other%20articles>).

LEGAL NOTICES: Please send all legal notices to legal@shopee.com and Attention it to the "General Counsel".

I HAVE READ THIS AGREEMENT AND AGREE TO ALL OF THE PROVISIONS CONTAINED ABOVE AND ANY REVISION THE SAME HEREAFTER. BY CLICKING THE "SIGN UP " OR "CONNECT WITH FACEBOOK" BUTTON DURING REGISTRATION, I UNDERSTAND THAT I AM CREATING A DIGITAL SIGNATURE, WHICH I INTEND TO HAVE THE SAME FORCE AND EFFECT AS IF I HAD SIGNED MY NAME MANUALLY.

Last Updated: 23 June 2026

Are you satisfied with the article?

Satisfied

Unsatisfied

Customer Service

Give us a call

Mon - Sun 8am - 10pm

Have a chat with us

24 hours

[Policies](https://help.shopee.sg/portal/4/category/17470-Policies/17472-Shopee-Policies?page=1)

[Shopee Terms of Service](https://help.shopee.sg/portal/article/77148-Terms-of-Service?previousPage=secondary%20category)

[Shopee Privacy Policy](https://help.shopee.sg/portal/article/77149)

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